

WHEN RECORDED RETURN TO:

W. Scott Jenkins, Jr., Esq.
DORSEY & WHITNEY LLP
2325 E. Camelback Rd., Ste. 900
Phoenix, Arizona 85016
For information contact:
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NOTICE OF TRUSTEE'S SALE AND NOTIFICATION
OF DISPOSITION OF COLLATERAL
(Flagstar/Diamond Elite Peoria/Bayis/Tov H Equities)

The following legally described trust property will be sold, pursuant to the power of sale under that certain *Deed of Trust, Assignment of Leases and Rents, Security Agreement and Fixture Filing* (as amended, modified, or assigned, the "Deed of Trust") recorded on July 20, 2021 at Recording No. 20210787679 in the records of Maricopa County, Arizona. **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL.** The sale will occur at public auction to the highest bidder at the law offices of Dorsey & Whitney LLP, 2325 E. Camelback Rd., Ste. 900, Phoenix, Arizona 85016, in Maricopa County, on **October 21, 2022**, at 10:00 a.m. of said day. At the same time and location, pursuant to A.R.S. § 47-9604, the Trustee will sell some or all of the personal property and fixtures in which the Beneficiary was granted a security interest by the Deed of Trust.

The following additional information concerning the trust real property, the Deed of Trust and the Trustee's Sale is provided pursuant to A.R.S. § 33-808(C):

Street Address or Identifiable Location: 10134 West Mohawk Lane, Peoria, Arizona 85382

Legal Description: See attached Exhibit "A"

Tax Parcel Number: 200-14-008D

Original Principal Balance: \$11,800,000.00

Beneficiary's Name and Address: Flagstar Bank, N.A., as successor-in-interest to New York Community Bank, a New York banking corporation, NYCB Plaza, 102 Duffy Avenue, 3rd Floor, Hicksville, New York 11801

Original Trustor's Stated Name and Address: Diamond Elite Peoria LLC, an Arizona limited liability company, 23 Robert Pitt Drive, Suite 100B, Monsey, New York 10952; Bayis Realty AZ LLC, an Arizona limited liability company, 23 Robert Pitt Drive, Suite 100B, Monsey, New York 10952; Tov H Equities LLC, a New York limited liability company, 23 Robert Pitt Drive, Suite 100B, Monsey, New York 10952

Current Trustee's Name, Address and Telephone Number: W. Scott Jenkins, Jr., Esq., Dorsey & Whitney LLP, 2325 E. Camelback Rd., Ste. 900, Phoenix, Arizona 85016 (602) 735-2700 (for information contact C. McKenna Sauer, sauer.mckenna@dorsey.com)

Manner of Trustee Qualification: Member of State Bar of Arizona (A.R.S. § 33-803(A)(2))

Name of Trustee's Regulator: State Bar of Arizona (Arizona Supreme Court)

The sale will be made for cash, federal funds wire transfer or other form of payment satisfactory to Trustee (payable at the time of sale or as allowed by the Trustee under Arizona law), but without covenant or warranty, express or implied, regarding title, condition, possession, encumbrances, or rights, requirements or limitations of any third parties or any other matter, to pay the obligations secured by the Deed of Trust in whole or in part. Every bidder except for Beneficiary will be required to provide a \$10,000 deposit in form satisfactory to Trustee as a condition to entering a bid. Beneficiary reserves the right to transfer the secured indebtedness to, and/or to acquire title to all or part of the collateral in the name of, a title-holding affiliate following the commencement of this sale.

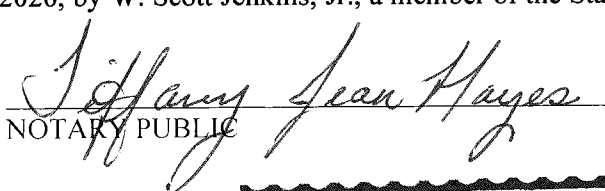
This sale will not exhaust the power of sale contained in the Deed of Trust as to any remaining property encumbered by the Deed of Trust, which may, at Beneficiary's option, be sold in one or more subsequent sale proceedings. The recordation of this Notice does not constitute an election to proceed against any given collateral, or to pursue any ^{Unofficial Document} given remedy, to the exclusion of any other collateral or remedy. Trustee and Beneficiary expressly reserve the right, without impairing the effectiveness of the sale described herein, to conduct one or more further judicial or non-judicial sales of any of Beneficiary's collateral to clear or perfect title to any portion of or interest in the collateral or for any other purpose; the delivery or recordation of a Trustee's Deed to Beneficiary or any third party will in no way impair the foregoing right.

DATED this 22nd day of July, 2026.


W. Scott Jenkins, Jr., a member of the State Bar of
Arizona, Successor Trustee

STATE OF ARIZONA)
) ss.
County of Maricopa)

The foregoing *Notice of Trustee's Sale and Notification of Disposition of Collateral* was acknowledged before me this 22nd day of July, 2026, by W. Scott Jenkins, Jr., a member of the State Bar of Arizona, Successor Trustee.


NOTARY PUBLIC

My commission expires:

May 6, 2028

